There's a beautiful מדרש in מסכת שבת דף פח עמוד ב which discusses the words of מתן תורה (שמות י״ט:ג׳): וּמֹשֶׁה עָלָה אֶל הָאֱלֹקִים. The מדרש is well known, but its ramifications are not: בְּשָׁעָה שֶׁעָלָה מֹשֶׁה לַמָּרוֹם - at the time that משה רבינו went up on הר סיני, to the higher spheres; אָמְרוּ מַלְאֲכֵי הַשָּׁרֵת לִפְנֵי הַקָּדוֹשׁ בָּרוּךְ הוּא: רִבּוֹנוֹ שֶׁל עוֹלָם - the מלאכים complained to Hashem: מַה לִּילוּד אִשָּׁה בֵּינֵינוּ - What is a human being doing here amongst us, the celestial beings, beings of perfection? (A ילוד אִשָּׁה represents a person with all of his חסרונות, his יצר הטוב and יצר הרע, and all of his various defects). אָמַר לָהֶן - Hakodosh Baruch Hu answered the מלאכים; לְקַבֵּל תּוֹרָה בָּא - he came to receive the Torah; אָמְרוּ לְפָנָיו - they said, "The Torah, which was established for 974 generations before בריאת העולם? We disagree; leave the Torah here. We want it to remain with us." אָמַר לוֹ הַקָּדוֹשׁ בָּרוּךְ הוּא לְמֹשֶׁה: הַחֲזֵיר לָהֶן תְּשׁוּבָה - Hashem told Moshe "You answer them." משה רבינו responded with a puzzling reply: אָמַר לְפָנָיו: רִבּוֹנוֹ שֶׁל עוֹלָם, מִתְיָרֵא אֲנִי שֶׁמָּא יִשְׂרְפוּנִי בַּהֶבֶל שֶׁבְּפִיהֶם - I'm afraid to answer the מלאכים, I'm afraid they'll burn me up with their הבל, with the breath from mouths. אָמַר לוֹ: אֶחוֹז בְּכִסֵּא כְבוֹדִי וַחֲזוֹר לָהֶן תְּשׁוּבָה - Hashem told him, "Hold on to the כסא הכבוד and answer them." Like a סגולה, a token, a trinket, a talisman - hold on, and respond. משה רבינו proceeded to say to them: "The Torah says we were in מצרים. Were you in מצרים? It says כבד את אביך ואת אמך. Do you have parents?" And he went through all the מצוות of the תורה which are clearly only שייך to בשר ודם. With this, he was able to defeat them.

The sefer חנוכת התורה החדש, quoted by R' Blum ע״ה, asks: What was the מלאכים's טענה? The גמרא doesn't specify what their argument was; it just says they didn't want to give the Torah to human beings. All the מפרשים discuss this. It's difficult to understand their claim, because the Torah was clearly designed for people. What was מלאכים's טענה?

The מלאכים's טענה was a simple one. There were two options here. There was an option to leave the Torah with the מלאכים who would only be מקיים those parts of the Torah that they are able to, but they would do so perfectly, or it could be given to people, who would fulfill it to the best of their imperfect abilities. No person can keep the entire Torah. And we know that we often fail in fulfilling the מצוות of both תורה שבכתב and תורה שבעל פה. A person's נטיה is to do עבירות and not to keep the Torah. So when הקדוש ברוך הוא said to Moshe הַחֲזֵיר לָהֶן תְּשׁוּבָה - give them an answer, the word תשובה not only means give them an answer, but give the מלאכים the תירוץ that we can utilize תשובה to defeat the מלאכים in their טענה. The ability to do תשובה allows us to be מכפר on all of our עבירות, and a person can be considered as if he kept the Torah with perfection. But משה רבינו said, "No, I can't do that, מִתְיָרֵא אֲנִי שֶׁמָּא יִשְׂרְפוּנִי בַּהֶבֶל שֶׁבְּפִיהֶם - I'm afraid that they're going to burn me up with the הבל שבפיהם," which means what? מלאכים are on a higher מדרגה. They don't have any עבירות. That is the הבל שבפיהם, their complete רוחניות and spirituality is their perfection. הקדוש ברוך הוא answered him, אֶחוֹז בְּכִסֵּא כְבוֹדִי, as it says in מסכת יומא פ״ו ע״א: גְּדוֹלָה תְּשׁוּבָה שֶׁמַּגַּעַת עַד כִּסֵּא הַכָּבוֹד - בעלי תשובה are on a higher מדרגה than those who don't have any עבירות e.g. מלאכים.

Rabbi Oelbaum recently discussed this point and made an interesting comment. He said הקדוש ברוך הוא is in שמים surrounded by מלאכים, but there's a little space between הקדוש ברוך הוא and the מלאכים. That little space, right next to the כיסא הכבוד, is off-limits to the מלאכים. Who can go there? A human being has the ability if he works hard enough.

This answers most of our questions, but there's only one problem. The מלאכים did not agree with this טענה, with this argument that בעלי תשובה are on a higher מדרגה. In their view, any person who has done an עבירה cannot possibly be on the same level as someone who's spotless, who's flawless, whose record is clean as a whistle, had no עבירות at all. משה didn't have a real answer to this, until we come to the pasuk that gives us the final answer. We have beings that have never sinned. Their record is spotless. Who are they? תינוקות של בית רבן. The תשב"ר, the little קינדערלאך. All of our little קינדערלאך, each and every one of them, are on a higher מדרגה, because they are without חטא. So we have both: we have the concept of תשובה, and we also have the הבל שאין בו חטא, we have those קינדערלאך who are giving us the ability to accept the Torah, as it says in the pasuk, מִפִּי עוֹלְלִים וְיוֹנְקִים יִסַּדְתָּ עֹז (תהילים ח׳:ג׳). It was only in the זכות of those little קינדערלאך that were able to get the Torah, not in the זכות of the אבות, not in the זכות of our מצוות, not in the

זכות of our Torah or even of our גמילות חסדים. It was in the זכות of the בית רבן של תינוקות. All of our קינדערלאך - they should all live and be well and געזונט - are what gave us the ability to get the תורה at הר סיני and for דור דורות.



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